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Cites F.B.I. "Conspiracy" To Destroy B.P.P.

APPEALS COURT ORDERS NEW FRED HAMPTON TRIAL

(Chicago, Ill.) - Citing strong evidence of conspiracies by the FBI and the Cook County State's Attorney's office to destroy the Black Panther Party, the U.S. Circuit Court of Appeals has ordered a new trial for 24 law enforcement officials involved in the December 4, 1969, predawn police raid in which Illinois Black Panther Party leaders Fred Hampton and Mark Clark were assassinated.

The April 23 ruling by a three-judge panel of the 7th Circuit of the U.S. Court of Appeals was hailed as a victory by the families of the two slain BPP members and the seven survivors of the 1969 raid, who are former members of the Illinois Chapter of the BPP. In January, 1976, a \$47.7 million lawsuit was filed in U.S. District Court by the Hampton and Clark families and the survivors against 28 law enforcement officials, including former Cook County State's Attorney Edward V. Hanrahan, three of his assistants, 15 Chicago police officers and several agents of the Chicago FBI office.

The 18-month trial, the longest in federal court history, ended in June, 1977, when Judge Joseph Sam Perry, in an unprecedented federal court decision, directed that the charges against all 28 defendants be dropped after the jury said it was deadlocked on reaching a verdict.

Following Perry's ruling, the plaintiffs appealed the case. Oral arguments were heard



Bullet-ridden bed where Chicago BPP leader FRED HAMPTON was assassinated in a predawn police raid on December 4, 1969. MARK CLARK (inset) was also killed in the raid planned by the FBI's COINTELPRO.

in August, 1978, and the case was then given to the appellate court for a ruling.

Judge Luther Swygert, one of the three members of the 7th Circuit Court panel, wrote in his decision, "It was clear from the record that (plaintiffs) had established an initial case that there were two conspiracies involved in

the 1969 incident.

One conspiracy, Swygert said, was intended to destroy the Black Panther Party and the other "was intended to frustrate any redress the plaintiffs might seek, and more importantly, to conceal the true character of the raid and

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RETRIAL OF HUEY P. NEWTON SET FOR JULY 30

(Oakland, Calif.) - Huey P. Newton is scheduled to go on trial on July 30 for the second time on the false charge that he murdered a Black prostitute in 1974.

Meanwhile, the Committee to Stop the Retrial of Huey P. Newton, which has gathered over 4,500 signatures on a petition demanding that Alameda County District Attorney Lowell Jensen drop the murder charge against the Black Panther Party president, announced an upcoming major development in Huey's case.

"We are about to take an action that will not only help obtain justice for Huey," committee spokesperson JoNina Abron said, "but will obtain justice for

countless other Black and poor people in Alameda County who have been victims of the district attorney's office during Jensen's 10-year rule."

The petition now being circulated by committee volunteers notes that courtroom expenditures alone in the first trial cost taxpayers \$3,375 per day, totaling \$60,750 for the 18-day trial.

"The county court system," the petition states, "is already severely overcrowded with cases. We believe that your (Jensen's) decision to retry Mr. Newton, whose first trial ended in a 10-2 vote for acquittal, is financially irresponsible given the current fiscal crisis in our government.

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BLACK WORKERS VOW TO FIGHT COURT RULING

(San Francisco, Calif.) - A U.S. District Court judge here recently dismissed charges of racial discrimination made against Caterpillar Tractor Company in a lawsuit filed by Black and other minority employees of the multinational corporation.

Attacking the decision made by Judge Spencer Williams, Lorenza Carlisle, co-founder and spokesperson of the Caterpillar Anti-Discrimination Committee, told THE BLACK PANTHER in an interview that Williams' ruling was "racist."

"He told us (Black and minority employees of Caterpillar) that we had wasted the court's time," Carlisle said, "and ordered us to pay the \$6,000 in court costs."

Carlisle and a fellow employee organized the Anti-Discrimination Committee at Caterpillar's San Leandro, California, plant in 1973. The committee has pressed several grievances against Caterpillar, the largest producer of tractor parts in the world. The grievances involve racial discrimination against Black and other minority employees in hiring, promotion and job training.

Out of the 2,000 workers at the San Leandro plant, some 400 are Black and minority, Carlisle said.

In 1975, the committee filed a class action suit against Caterpillar with Lorenza and several other Black and minority workers charging that they had been

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